TOWN OF TEMPLETON
TOWN CLERK
CAROL A. HARRIS
Telephone (978) 894-2758
Fax (978) 894-2790

MAILING ADDRESS
P.O. BOX 620
E. TEMPLETON, MA 01438

OFFICE ADDRESS
160 PATRIOTS ROAD
E. TEMPLETON, MA 01438

DATE: September 22, 2026

TO: Town of Templeton Citizen's

FROM: Town Clerk's Office

RE: **Templeton Annual of May 13, 2026 – Case # 12294**
Warrant Articles # 38 (Zoning)

Dear Ms. Harris:

Article 38 – Under Article 38, the Town voted to adopt a temporary moratorium on the construction of new data centers in the Town for one year. Because Article 38's temporary moratorium has a legitimate zoning purpose, it does not present a clear conflict with state law or the constitution, and we approve it. See Amherst v. Attorney General, 398 Mass. 793, 795-96 (1986) (requiring inconsistency with state law or the constitution for the Attorney General to disapprove a by-law).2

This decision briefly describes the by-law; discusses the Attorney General's standard of review of zoning by-laws under G.L. c. 40, § 32; and then explains why, governed as we are by that standard, we approve Article 38.

I. Summary of Article 38

Under Article 38, a citizen petitioned article, the Town adopted a new "360-Day Moratorium on 'Data Centers,'" that imposes a temporary moratorium on the construction of Data Centers in the Town for approximately one year until May 8, 2027 (360 days from May 13, 2026, the day Town Meeting voted Article 38) as follows:

> There is hereby imposed, effective immediately, a 360-day moratorium on any new construction and development within the Town of Templeton of "Data Centers", as

1 On August 18, 2026, we elected to proceed under the defect waiver provisions of Chapter 299 of the Acts of 2000 for Articles 36 and 38. In a certification received on September 14, 2026, the Town Clerk certified that the notice for Articles 36 and 38 was posted and published in accordance with the provisions of Chapter 299, and no claims were filed with the Office of the Town Clerk within 21 days of publication. Because no claims were received, the Attorney General was authorized to waive the procedural defect for Articles 36 and 38.

2 We will issue our decision on Article 36 under separate cover.

This institution is an equal opportunity provider and employer. To file a complaint of discrimination write USDA, Director, Office of Civil Rights, 1400 Independence Avenue, S.W., Washington, DC 20250-9410

defined above. Said moratorium prohibits acceptance by the town of any new applications and permits for zoning permissions and decisions for the intended purpose of the development and operation of a Data Center.

The temporary moratorium defines "Data Centers," as:

a building or series of buildings that houses and supports the high performance servers, storage systems, networking equipment, and related computing infrastructure and equipment necessary for storing, processing, and distributing data and applications.

The purpose of the moratorium is to provide the Town with the opportunity to research and understand the impacts Data Centers will have on the Town's infrastructure and overall quality of life for its residents. During the moratorium the Town intends to comprehensively study and conduct analysis of Data Center construction on the Town's police, fire and other emergency services, schools, water, sewer, and roadway infrastructure. The Town also intends for Town staff to identify policies and procedures for the enforcement of conditions imposed on Data Centers, including the use of "Community Benefit Agreements." Lastly, the Town will develop a timeline for recommending zoning by-law changes for Town Meeting's adoption.

II. Attorney General's Standard of Review of Zoning By-laws

Our review of Article 38 is governed by G.L. c. 40, § 32. In the review of by-laws pursuant to G.L. c. 40, § 32, the Attorney General has a "limited power of disapproval," and "[i]t is fundamental that every presumption is to be made in favor of the validity of municipal by-laws." Amherst, 398 Mass. at 795-96 (1986). The Attorney General does not review the policy arguments for or against the enactment. Id. at 798-99 ("Neither we nor the Attorney General may comment on the wisdom of the town's by-law.") "As a general proposition the cases dealing with the repugnancy or inconsistency of local regulations with State statutes have given considerable latitude to municipalities, requiring a sharp conflict between the local and State provisions before the local regulation has been held invalid." Bloom v. Worcester, 363 Mass. 136, 154 (1973). " Article 38, as an amendment to the Town's zoning by-laws, must be accorded deference. W.R. Grace & Co. v. Cambridge City Council, 56 Mass. App. Ct. 559, 566 (2002) ("With respect to the exercise of their powers under the Zoning Act, we accord municipalities deference as to their legislative choices and their exercise of discretion regarding zoning orders."). When reviewing zoning by-laws for consistency with the Constitution or laws of the Commonwealth, the Attorney General's standard of review is equivalent to that of a court. "[T]he proper focus of review of a zoning enactment is whether it violates State law or constitutional provisions, is arbitrary or unreasonable, or is substantially unrelated to the public health, safety or general welfare." Durand v. IDC Bellingham, LLC, 440 Mass. 45, 57 (2003). However, a municipality has no power to adopt a zoning by-law that is "inconsistent with the constitution or laws enacted by the [Legislature]." Home Rule Amendment, Mass. Const. amend. art. 2, § 6.

III. Municipal Authority to Adopt a Temporary Moratorium

A temporary moratorium is within a town's power when there is a stated need for "study, reflection and decision on a subject matter of [some] complexity..." W.R. Grace, 56 Mass. App. Ct. at 569 (City's temporary moratorium on building permits in two districts was within City's authority to zone for public purposes). However, the Supreme Judicial Court's holding in Zuckerman v. Hadley, 442 Mass. 511, 520-521 (2004) is a useful guardrail for towns considering

the adoption of moratoria: "Except when used to give communities breathing room for periods reasonably necessary for the purposes of growth planning generally, or resource problem solving specifically, as determined by the specific circumstances of each case, such [moratorium] zoning ordinances do not serve a permissible public purpose, and are therefore unconstitutional." Id., 442 Mass. at 520-521 (citing Sturges v. Chilmark, 380 Mass. 246, 257 (1980)). Towns must show that a by-law creating a moratorium "has some reasonable prospect of a tangible benefit to the community" and that there was a "reasonable basis" for the by-law. Sturges, 380 Mass. at 257. However, a town is not required to conduct studies before adopting a temporary moratorium or to memorialize all the factors that may lead to a town's decision on a zoning by-law. W.R. Grace, 56 Mass. at 569.

IV. Analysis of Article 38's Temporary Moratorium

The text of the temporary moratorium by-law states that its purpose is to provide the Town time to research and better understand the impacts of Data Centers with the intent to provide proposed zoning amendments to Town Meetings that will address the public concerns associated with Data Center construction and use, including requiring a Community Benefit Agreement. The temporary moratorium states that Data Centers impact energy, water, and sewer availability and capacity, and other public health issues, including noise. The Town's temporary moratorium is limited in time to 360 days (until May 8, 2027) and scope (prohibition on acceptance of applications and permission to construct Data Centers), and does not present the problem of a rateof-development by-law of unlimited duration which the Zuckerman court determined was unconstitutional. Zuckerman, 442 Mass. at 520-521. Therefore, the temporary moratorium appears to be adopted for a legitimate planning purpose and the Town is utilizing the moratorium for the proper purpose of "growth planning." Id. Because the moratorium appears to be a reasonable mechanism to achieve a legitimate planning purpose, we approve Article 38. However, we suggest that the Town consult with Town Counsel to ensure that the planning efforts are carried out in a timely way so that the moratorium time period is used for its intended purpose: "to give communities breathing room for periods reasonably necessary for the purposes of growth planning generally, or resource problem solving specifically, as determined by the specific circumstances of each case" and is not of unlimited duration. Id. at 520-521.

IV. Additional Comments on Article 38's Approved Provisions

While we approve Article 38, the Town should be aware that on June 25, 2026, Governor Healey issued "Guidance for data centers seeking sales and use tax exemptions and expectations for broader data center development" ("Guidance"). See https://www.mass.gov/doc/healeydriscoll-administration-statement-of-expectations-for-responsible-data-center-development-andoperations-in-massachusetts/download. The Guidance establishes the expectations for responsible
Data Center development and operations in order to balance economic growth and innovation while protecting Massachusetts residents, businesses, and communities. See Guidance at p. 3. Under the Guidance, Data Centers are expected to: provide their own clean energy; avoid shifting or increasing costs to energy consumers; protect environmental and community health; avoid imposing environmental and social burdens in already burdened communities; contribute meaningfully to the local and state economies; and contribute to clean energy goals. See Guidance at p. 9. The Guidance further states that residents should not bear the costs or burdens associated with Data Centers. Instead, Data Centers should: bear the full cost of their energy supply; minimize or mitigate air or noise pollution; and ensure water usage does not increase

customers' water use costs or diminish water quality. The Guidance makes it clear that its expectations supplement, and do not replace, existing state and local siting, permitting and regulatory requirements. Lastly, the Guidance requires the Executive Offices of Economic Development and Energy and Environmental Affairs to develop and provide a resource guide to help municipalities in siting Data Centers in their communities.

In addition, most recently, on September 8, 2026, Governor Healey approved Executive Order Number 658, "Establishing Requirements for Responsible Data Center Development and Operations in Massachusetts to Protect and Support Ratepayers, Communities, and the Environment." The text of the Executive Order can be found here: https://www.mass.gov/executiveorders/no-658-establishing-requirements-for-responsible-data-center-development-and-operations-inmassachusetts-to-protect-and-support-ratepayers-communities-and-the-environment

Among other things, this Executive Order requires Data Centers, as defined in the Executive Order, to receive local approval through a Community Benefits Agreement before receiving approval for state permits, to pay for their own clean energy, and to adhere to water, air, and community engagement standards provided in the Guidance.

We suggest that the Town discuss the Executive Order and the Guidance, as well as any other resources provided by the State, with Town Counsel. In addition, we encourage the Town to monitor for any future changes to state laws or regulations relating to Data Centers.

V. Conclusion

Based on our limited scope of review under G.L. c. 40, § 32, we determine that Article 38 does not appear to conflict with state law and on these grounds we approve Article 38. See Amherst, at 795-96.

I have posted copies in each precinct; namely, at the Post Office in Templeton, the Post Office in E. Templeton, the Post Office in Baldwinville and at the Town Office Building at 160 Patriots Road in E. Templeton and on the Town's website @ www.templetonma.gov Pursuant to G.L. c. 40, sec. 32.

Sincerely,

Carol A. Harris, Templeton Town Clerk